

complaint

Mr and Mrs H are unhappy a claim made under their home insurance for storm damage has been declined by Ageas Insurance Limited (Ageas).

background

In January 2019 Mr and Mrs H contacted Ageas to make a claim for storm damage to their roof.

During the call Ageas checked the weather conditions. They said the wind speeds weren't strong enough to be a storm, so they wouldn't be able to consider a claim.

Mr H said there were tradesmen present carrying out a permanent repair to the roof. He said he wasn't willing for a temporary repair to be carried out, in case further damage was caused. Ageas said that even if they were to send someone out, repairs would have been completed so they wouldn't be able to validate the claim.

Mr H complained to Ageas who said their decision to decline the claim was correct because the wind speeds weren't strong enough to be considered a storm.

Mr H wasn't happy with this outcome, so he complained to us. Our investigator looked into it and didn't think Ageas were wrong to decline the claim. In his opinion there were storm conditions, and the damage was consistent with storm damage. However he didn't think it had been shown that the damage being claimed for had been caused by the weather at the time.

Mr and Mrs H didn't agree with the investigator and asked for a final decision from an ombudsman

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having considered all the information provided by both parties, I'm not upholding the complaint. I'll explain why.

As our investigator has said, when we consider complaints for storm damage, we follow a set approach. There are three questions which need to be considered and if all the answers are 'yes' a claim will likely succeed. But if any of the answers are 'no' then it's likely the claim will fail.

were there storm conditions?

When Mr H called to report the damage, Ageas checked wind records for the area and said these reached 48mph. Our investigator also looked at weather records which also showed the same.

I can see the weather checks carried out by Ageas and our investigator were using weather stations some distance from Mr and Mrs H's property. So the actual weather in the area could be considerably different.

Mr and Mrs H provided data from the Met office which recorded a maximum wind speed of 58mph, and this appears to be for their postcode, so potentially closer than the other weather stations.

In any case, it isn't in dispute that the wind speeds reached at least 48mph. And I consider this could be storm conditions as structural damage could arise in winds of these speeds.

Ageas has said the weather conditions need to be more than 55mph for it to be considered a storm as this is how it is defined in the policy. However having looked at the policy terms and conditions, this isn't mentioned. Even if it were, I'm not sure I would regard that as fair or reasonable.

So, I'm satisfied there was a storm. And I need to consider the two additional questions that we look at when reviewing storm damage claims.

is the damage consistent with storm damage?

Mr and Mrs H reported damage to the roof. They said that both the felt and boards underneath had been ripped off during the high winds. This type of damage, given the right conditions, is consistent with storm damage.

was the storm the main cause of the damage?

When insurance claims are made, we think it's fair and reasonable for the insurer to expect the customer to demonstrate that the losses they're claiming for were caused by an insured event (in this case, the stormy weather).

If the insurer then wants to claim that an exclusion applies or a condition wasn't met, the onus switches to them – they have to show the exclusion or condition applies.

Often when a storm damage claim is made, an insurer will send one of its agents to inspect the damage and validate the claim. That didn't happen in this case. In part this was because Ageas said the weather didn't reach the required speeds to be considered storm damage – which I don't agree with.

However, I have listened to the call recording from when the claim was reported. Mr H said that he had contractors at his property about to carry out a permanent repair. He said he wasn't prepared for a temporary repair to be carried out, in case the weather became worse and caused further damage.

When being told this, Ageas said that even if they were to send someone out, the works would have already been completed, so they wouldn't be able to inspect the damage or validate the claim.

Whilst it would be reasonable for Ageas to send someone out to inspect the damage, I wouldn't expect this to be on the same day of reporting. As Mr H had already said permanent repairs were being carried out, and Ageas had already notified him they wouldn't be able to validate the damage, I don't think it would have changed the position if Ageas *had* sent someone out.

I've seen the invoice for Mr and Mrs H's repairs. Whilst this lists the repairs carried out, it doesn't demonstrate that the weather conditions at the time were the main cause of damage being claimed for.

In addition to this, when reporting the loss to Ageas, Mr and Mrs H said the roof had been in place when they moved into the property more than nine years previously. And it hadn't had any maintenance work since then.

Generally flat roofs have a lifespan of 10-15 years, but this is also affected by a number of factors. Mr and Mrs H's roof had been in place for *at least* nine years – and hadn't been maintained. So whilst the damage *could* have been caused by the storm, it's also possible – if not more likely - the weather simply highlighted existing issues with the roof.

As I've said, when making a claim the onus is on the customer to show their losses were caused by the insured event (the storm). Mr and Mrs H haven't done that in this case. There are no reports to show the roof was in good repair prior to the storm or that the storm was the main cause of the damage.

So, whilst I'm satisfied there were storm conditions at the time and the damage is consistent with this, I'm unable to say the storm was the main cause of damage, or ask Ageas to pay the claim.

my final decision

For the reasons set out above, I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr and Mrs H to accept or reject my decision before 12 September 2019.

Neil Marshall
ombudsman